

Court No. - 3

Case :- WRIT - C No. - 8910 of 2022

Petitioner :- Arvind Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Manish Dev Singh

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State-respondents.

This writ petition has been filed praying for the following reliefs:

"(i) Issue an order, direction or writ in the nature of certiorari quashing the impugned recovery certificate dated 19.07.2021 (RC Form-2), issued by the respondent no.2 (Annexure No.5 to this writ petition) whereby and whereunder petitioner herein was directed to be deposited Rs. 3,43,084/- in terms of aforesaid writ of demand, failing which coercive measure would be resorted against him.

(ii) Issue an appropriate order or direction, against the respondent nos. 1 and 2 herein not to resort any coercive measure against the petitioner herein, till the determination of final assessment and consequential action as provided under Electricity Act, 2003."

Learned counsel for the respondent No 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 5.7.2022

T.S.